

**CV-25-012482 KOURY, ANITA vs FORD MOTOR COMPANY – a)
Defendant's Motion for Judgment on the Pleadings as to Plaintiffs' First
Amended Complaint- DENIED; b) Defendant's Motion to Compel
Depositions of Plaintiffs, Request for Sanctions of \$750.00 – GRANTED in
part, DENIED in part.**

County: Stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: a) For the reasons set forth below, the motion for judgment on the pleadings is DENIED. On May 20, 2026, Defendant filed a motion for judgment on the pleadings on the grounds that Plaintiffs' third and fourth causes of action of the First Amended Complaint fail to state facts sufficient to constitute a cause of action. Plaintiffs opposed and Defendant replied. Third Cause of Action for Fraudulent Concealment "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) "The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.) Pleading fraud with specificity Defendant argues that the fraudulent concealment cause of action does not satisfy the requisite specificity required to plead fraud. "There are certain exceptions to the particularity requirement." (Citizens of Humanity, LLC v. Costco Wholesale Corp. (2009) 171 Cal.App.4th 1, 20 disapproved on another ground by Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310.) " 'Less specificity is required when 'it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy.' " (Ibid.) Here, the FAC satisfies the requirement of specificity to state a fraudulent concealment action. Courts have explained that the requirement of specificity in fraud actions "is intended to apply to affirmative misrepresentations" rather than concealment or nondisclosure. (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384, as modified on denial of reh'g (Mar. 18, 2009).) The FAC alleges that Ford—through at least its marketing materials, salespersons, and repair representatives—concealed and/or failed to disclose material information regarding known defects with the ten-speed transmission model that was installed in the 2024 Lincoln Navigator that Plaintiffs' leased. The Court finds the allegations in the FAC sufficiently satisfy the specificity requirement in this instance. Defendant next argues that the FAC fails to demonstrate that it had a duty to disclose alleged defects with the ten-speed transmission. "A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). [Citations.]" (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) "Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as 'between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.' " (Ibid.) Here, the FAC adequately alleges there is a buyer-seller relationship between Defendant and Plaintiffs because Plaintiffs leased a 2024 Lincoln Navigator from Big Valley Ford in Stockton, California. The FAC alleges that Big Valley Ford is an authorized dealer and agent of Defendant, and that Defendant backed the leased vehicle with warranties. Therefore, the FAC alleges a seller and buyer relationship forming the basis of a duty to disclose. (See, e.g., Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844 ["Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself) . . . we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects."].) The CLRA cases Defendant relies on are distinguishable, because those cases did not contain allegations that the defect could cause physical injury or safety concerns. (E.g., Daugherty v. American Honda Motor Co., Inc. (2006) 144 Cal.App.4th 824, 836, as modified (Nov. 8, 2006) ["The complaint is devoid of factual allegations showing any instance of physical injury or any safety concerns posed by the defect."].) The FAC also pleads exclusive knowledge and active concealment. For example, the FAC pleads that Defendant possessed exclusive knowledge of the alleged defective transmission through internal channels and that Defendant concealed the information by intentionally omitting it from

marketing materials and failing to disclose such information to customers. Accordingly, the Court finds that the FAC adequately pleads a duty to disclose. (See, e.g., Dhital, supra 84 Cal.App.5th at 844–45 [“revers[ing] the trial court’s order sustaining Nissan’s demurrer to the SAC’s fourth cause of action (the claim for fraudulent inducement by concealment)” where plaintiffs pleaded, inter alia, that certain transmission models installed in Nissan vehicles were defective and that “Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information”].) Fraud damages The FAC alleges that if Plaintiffs would not have leased the vehicle or would have paid substantially less for it but for Defendant’s concealment regarding alleged defects with the ten-speed transmission. The allegations are sufficient to state causation at this stage. Defendant’s arguments regarding the economic loss rule were presented for the first time in Defendant’s reply, thus the Court does not consider them. Fourth Cause of Action for Violation of Civil Code Section 1750 et seq. (Consumer Legal Remedies Act) Defendant argues that the Consumer Legal Remedies Act (“CLRA”) claim fails for the same reasons as the fraud claim. For the same reasons discussed above, the Court finds the CLRA claim is adequately stated. b) On June 5, 2026, Defendant filed a motion to compel depositions of Plaintiffs Anita Koury and John Koury and request for sanctions. On July 22, 2026, Plaintiffs filed an opposition. On July 24, 2026, Defendant filed a reply. Defendant served the notices of deposition on February 19, 2026, but had to reschedule the noticed date due to a trial conflict. Despite numerous follow-ups from Defendant, Plaintiffs failed to provide alternate dates for the deposition. Defendant filed the instant motion, asking the Court to order Plaintiffs to appear for their depositions and produce documents on a date falling within 15 days of the Court’s order. Subsequently, Plaintiffs contacted Defendant and the depositions were scheduled for July 31, 2026. Defendant requests that the instant motion remain on calendar and requests that the Court grant the motion in the event the depositions do not occur on July 31, 2026, as scheduled. Pursuant to Code of Civil Procedure sections 2025.450, the motion to compel is GRANTED. Plaintiffs shall appear for deposition within 15 days of service of the signed order. The Court finds the circumstances here make the imposition of sanctions unjust and declines to issue them. The request for sanctions is DENIED. Moving party to submit a proposed order within five court days that conforms with this ruling.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 71535c06b6134dee8bc0c327e8f7fc46f9d9027da7a2b987deab8e98170ca35d

CV-25-012482 - KOURY, ANITA vs FORD MOTOR COMPANY – a) Defendant’s Motion for Judgment on the Pleadings as to Plaintiffs’ First Amended Complaint- DENIED; b) Defendant’s Motion to Compel Depositions of Plaintiffs, Request for Sanctions of \$750.00 – GRANTED in part, DENIED in part.

a) For the reasons set forth below, the motion for judgment on the pleadings is DENIED.

On May 20, 2026, Defendant filed a motion for judgment on the pleadings on the grounds that Plaintiffs’ third and fourth causes of action of the First Amended Complaint fail to state facts sufficient to constitute a cause of action. Plaintiffs opposed and Defendant replied.

Third Cause of Action for Fraudulent Concealment

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) “The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

Pleading fraud with specificity

Defendant argues that the fraudulent concealment cause of action does not satisfy the requisite specificity required to plead fraud. “There are certain exceptions to the particularity requirement.” (Citizens of Humanity, LLC v. Costco Wholesale Corp. (2009) 171 Cal.App.4th 1, 20 disapproved on another ground by Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310.) “ ‘Less specificity is required when ‘it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy.’ ” (Ibid.)

Here, the FAC satisfies the requirement of specificity to state a fraudulent concealment action. Courts have explained that the requirement of specificity in fraud actions “is intended to apply to affirmative misrepresentations” rather than concealment or nondisclosure. (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384, as modified on denial of reh’g (Mar. 18, 2009).) The FAC alleges that Ford—through at least its marketing materials, salespersons, and repair representatives—concealed and/or failed to disclose material information regarding known defects with the ten-speed transmission model that was installed in the 2024 Lincoln Navigator that Plaintiffs’ leased. The Court finds the allegations in the FAC sufficiently satisfy the specificity requirement in this instance.

Duty to disclose

Defendant next argues that the FAC fails to demonstrate that it had a duty to disclose alleged defects with the ten-speed transmission.

“A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). [Citations.]” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.) “Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as ‘between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.’ ” (*Ibid.*)

Here, the FAC adequately alleges there is a buyer-seller relationship between Defendant and Plaintiffs because Plaintiffs leased a 2024 Lincoln Navigator from Big Valley Ford in Stockton, California. The FAC alleges that Big Valley Ford is an authorized dealer and agent of Defendant, and that Defendant backed the leased vehicle with warranties. Therefore, the FAC alleges a seller and buyer relationship forming the basis of a duty to disclose. (See, e.g., *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844 [“Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself) . . . we decline to hold plaintiffs’ claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.”].) The CLRA cases Defendant relies on are distinguishable, because those cases did not contain allegations that the defect could cause physical injury or safety concerns. (E.g., *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 836, as modified (Nov. 8, 2006) [“The complaint is devoid of factual allegations showing any instance of physical injury or any safety concerns posed by the defect.”].)

The FAC also pleads exclusive knowledge and active concealment. For example, the FAC pleads that Defendant possessed exclusive knowledge of the alleged defective transmission through internal channels and that Defendant concealed the information by intentionally omitting it from marketing materials and failing to disclose such information to customers. Accordingly, the Court finds that the FAC adequately pleads a duty to disclose. (See, e.g., *Dhital*, supra 84 Cal.App.5th at 844–45 [“revers[ing] the trial court’s order sustaining Nissan’s demurrer to the SAC’s fourth cause of action (the claim for fraudulent inducement by concealment)” where plaintiffs pleaded, inter alia, that certain transmission models installed in Nissan vehicles were defective and that “Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information”].)

Fraud damages

The FAC alleges that if Plaintiffs would not have leased the vehicle or would have paid substantially less for it but for Defendant’s concealment regarding alleged defects with the ten-speed transmission. The allegations are sufficient to state causation at this stage. Defendant’s arguments regarding the economic loss rule were presented for the first time in Defendant’s reply, thus the Court does not consider them.

Fourth Cause of Action for Violation of Civil Code Section 1750 et seq. (Consumer Legal Remedies Act)

Defendant argues that the Consumer Legal Remedies Act ("CLRA") claim fails for the same reasons as the fraud claim. For the same reasons discussed above, the Court finds the CLRA claim is adequately stated.

b) On June 5, 2026, Defendant filed a motion to compel depositions of Plaintiffs Anita Koury and John Koury and request for sanctions. On July 22, 2026, Plaintiffs filed an opposition. On July 24, 2026, Defendant filed a reply.

Defendant served the notices of deposition on February 19, 2026, but had to reschedule the noticed date due to a trial conflict. Despite numerous follow-ups from Defendant, Plaintiffs failed to provide alternate dates for the deposition. Defendant filed the instant motion, asking the Court to order Plaintiffs to appear for their depositions and produce documents on a date falling within 15 days of the Court's order. Subsequently, Plaintiffs contacted Defendant and the depositions were scheduled for July 31, 2026. Defendant requests that the instant motion remain on calendar and requests that the Court grant the motion in the event the depositions do not occur on July 31, 2026, as scheduled.

Pursuant to Code of Civil Procedure sections 2025.450, the motion to compel is GRANTED. Plaintiffs shall appear for deposition within 15 days of service of the signed order. The Court finds the circumstances here make the imposition of sanctions unjust and declines to issue them. The request for sanctions is DENIED. Moving party to submit a proposed order within five court days that conforms with this ruling.